

26PR00376 Estate of Jimmy D. Chase

County: santa-barbara

Division: Decedent's Estate

Department: 4 SM-Cook

Hearing date: 2026-09-21

Motion: Petition for Probate and Letters Testamentary

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Tentative Ruling: Estate of Jimmy D. Chase

Case Number

26PR00376

Case Type

Decedent's Estate

Hearing Date / Time

Mon, 09/21/2026 - 08:30

Nature of Proceedings

Petition for Probate and Letters Testamentary

Tentative Ruling

Probate Notes:

Appearances required.

The following is noted for the Court at the hearing:

No Original Will on file. An original will and any codicil to that will must be lodged with the Court. (Prob. Code, §§ 8200, et seq.) It is insufficient to attach a copy of the will to the petition without lodging the original.

If the original is lost, petitioner must amend the Petition to provide an attachment alleging why the presumption of destruction in Probate Code section 6124 should not apply, or provide evidence overcoming the presumption of destruction.

Petitioner may overcome this presumption with substantial evidence that shows the Court some supported fact that the Decedent did not destroy the will. Petitioner is referred to the following authority to understand the evidence required to overcome the presumption of destruction in Probate Code section 6124:

Estate of Trikha (2013) 219 Cal.App.4th 791, 804 [substantial evidence required to overcome presumption]

Lauermann v. Superior Court (2005) 127 Cal.App.4th 1327, 1333 [Duplicate Original not usually sufficient]

Judges

Judge Jed Beebe

Dept. 4 SM-Cook

312-C East Cook Street

Santa Maria, CA 93454

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